

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

ISRAEL PIETER

Plaintiff,

vs.

CITY OF NEW YORK, POLICE OFFICER OSCAR VARASVILLA, TAX NO.
954394, NEW YORK CITY POLICE OFFICERS "JOHN DOE" 1-3 SAID
DEFENDANTS' TRUE NAMES BEING UNKNOWN TO PLAINTIFF, IT
BEING THEREBY INTENDED TO DESIGNATE THOSE POLICE
OFFICERS,

Defendant(s)

SUMMONS

Plaintiffs designate New York County
as the place of trial.

The basis of venue is:
Plaintiff's address:
601 W 162nd Street Apt. 5F
New York, NY

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
April 28, 2017

STEVEN ADAM RUBIN, ESQ.
STEVEN ADAM RUBIN & ASSOCIATES, PLLC
Attorneys for Plaintiff
71 West 23 Street, Suite 1623
New York, New York 100010
212-643-5402

TO: Zachary W. Carter
CORPORATION COUNSEL
Attorneys for CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER OSCAR VARASVILLA
33RD PRECINCT
2207 AMSTERDAM AVENUE
NEW YORK, NY 10032

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3 SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

4 ISRAEL PIETER

5 Plaintiff,

6 vs.

7 CITY OF NEW YORK, POLICE OFFICER OSCAR VARASVILLA TAX
8 NO. 954394 and NEW YORK CITY POLICE OFFICERS "JOHN DOE" 1-3
9 SAID DEFENDANTS' TRUE NAMES BEING UNKNOWN TO PLAINTIFF,
IT BEING THEREBY INTENDED TO DESIGNATE THOSE POLICE
OFFICERS,

9 Defendants

Index No.:

Date Purchased:

VERIFIED COMPLAINT

10 Plaintiff by his attorneys Steven Adam Rubin & Associates, PLLC for his complaint herein, upon information and
11 belief, respectfully alleges:

- 12 1. At all times hereinafter mentioned, plaintiff is natural person residing in New York County, State of
13 New York.
- 14 2. Upon information and belief, defendant THE CITY OF NEW YORK was and still is a municipal
15 corporation, duly organized and existing under and by virtue of the laws of the State of New York.
- 16 3. Upon information and belief, at all times hereinafter mentioned, defendant the CITY OF NEW YORK,
17 by its agents, servants and/or employees operated and maintained a police force known as the NEW
18 YORK CITY POLICE DEPARTMENT, the headquarters of which are located at One Police Plaza,
19 New York, New York.
- 20 4. That plaintiff has complied with all the conditions precedent to the bringing of this action, and within
21 ninety (90) days after the date of the occurrence herein, on January 13, 2017, 2014, plaintiff duly
22 served a written notice of claim upon the Comptroller of the CITY OF NEW YORK, pursuant to law,
23 said notice being verified by oath of plaintiffs, specifying their intention to sue by commencing an
24 action against the defendant, CITY OF NEW YORK and THE NEW YOUR CITY POLICE
25 DEPARTMENT for false arrest, false imprisonment, violation of civil rights, personal injuries and

negligently hiring, training, supervising and training of POLICE OFFICER OSCAR VARASVILLA, TAX NO. 954394, AND JOHN DOE POLICE OFFICERS , involved in the investigation and/or arrest of plaintiff ISRAEL PIETER on or about December 31, 2016; and on March 21, 2017 a hearing pursuant to 50-H was conducted.

5. That this action is brought within one year after the said occurrence and that more than thirty days have elapsed since service of such notice of claim and said claim remains unadjusted and defendants refuse to make any adjustment of same.
6. That at all times hereinafter mentioned, defendant POLICE OFFICER OSCAR VARASVILLA, TAX NO. 954394, and defendant POLICE OFFICERS "JOHN DOES" were members of the Police Department of the City of New York, and were acting during the course of their employment with, for the business uses and purposes of, and within the scope of their employment with the Police Department of the City of New York and of the defendant, CITY OF NEW YORK.

FIRST CAUSE OF ACTION

7. Plaintiff repeats, reiterates ,and realleges each and every allegation contained in the above paragraphs with the same force and effect as if more fully set forth herein.
8. That on December 31, 2016, Defendants the CITY OF NEW YORK/ THE NEW YORK CITY POLICE DEPARTMENT and its employee, agents and/or servants, specifically POLICE OFFICER OSCAR VARASVILLA, TAX NO. 954394 AND NEW YORK CITY POLICE OFFICERS "JOHN DOE" SAID DEFENDANTS TRUE NAMES BEING UNKNOWN TO PLAINTIFF, IT BEING THEREBY INTENDED TO DESIGNATE THOSE POLICE OFFICERS, unlawfully, illegally, unjustifiably, intentionally, maliciously, wantonly, recklessly, and without probable cause, reason or justification, arrested and detained plaintiff ISRAEL PIETER.
9. That the aforesaid arrest and confinement of plaintiff was caused solely and wholly through and by reason of the culpable acts and conduct of the defendants their agents, servants and/or employees acting under their employment and within the scope of their authority without any warrant or other legal process and without authority of the law and without any reasonable cause or belief that the

plaintiff had committed any crime and with no culpable conduct on the part of the plaintiff contributing thereto.

10. That by reason of the aforesaid, the plaintiff was confined for a period of several hours.

11. That the plaintiff was conscious of his confinement.

12. That the plaintiff did not consent to his confinement.

13. The confinement of the plaintiff by members of the CITY OF NEW YORK/ THE NEW YORK CITY POLICE DEPARTMENT and its employee, agents and/or servants was not privileged.

14. That by reason of the false arrest, imprisonment and detention of the plaintiff, plaintiff was denied his liberty, and caused to sustain serious, severe and painful mental injuries together with humiliation, ridicule, degradation of his good character and damage to his good name, and he became incapacitated and was unable to attend to his usual duties.

15. This action falls within one or more of the exemptions set forth in CPLR §1602.

16. The amount exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

SECOND CAUSE OF ACTION

17. Plaintiff repeats, reiterates and realleges each and every allegation contained in the above paragraphs with the same force and effect as if more fully set forth herein.

18. That on DECEMBER 31, 2016, Defendant CITY OF NEW YORK/THE NEW YORK CITY POLICE DEPARTMENT, its agents, servants and/or employees, specifically POLICE OFFICER OSCAR VARASVILLA, TAX NO. 954394 AND NEW YORK CITY POLICE OFFICERS "JOHN DOE" SAID DEFENDANTS TRUE NAMES BEING UNKNOWN TO PLAINTIFF, IT BEING THEREBY INTENDED TO DESIGNATE THOSE POLICE OFFICERS unlawfully, illegally, unjustifiably, intentionally, maliciously, wantonly, recklessly, and without probable cause, reason or justification stripped searched plaintiff herein.

19. That Defendant CITY OF NEW YORK/THE NEW YORK CITY POLICE DEPARTMENT, its agents, servants and/or employees, specifically POLICE OFFICER OSCAR VARASVILLA, TAX NO. 954394

1 AND NEW YORK CITY POLICE OFFICERS "JOHN DOE" SAID DEFENDANTS TRUE NAMES
2 BEING UNKNOWN TO PLAINTIFF, IT BEING THEREBY INTENDED TO DESIGNATE THOSE
3 POLICE OFFICERS unlawfully, illegally, unjustifiably, intentionally, maliciously, wantonly, and
4 recklessly violated the Plaintiff's constitutional rights by conducting an illegal strip search of the
5 Plaintiff.

6 20. That Strip-searches of arrestees charged with misdemeanors or other minor offenses violate the
7 Fourth Amendment to the United States Constitution unless there is a reasonable suspicion that the
8 arrestee is concealing weapons or contraband based on the crime charged, and the circumstances of
9 the arrest.

10 21. That DEFENDANT POLICE OFFICER OSCAR VARASVILLA, TAX NO. 954394 had no
11 reasonable suspicion that the Plaintiff was concealing evidence underneath clothing.

12 22. That the scope of the intrusion of the strip search was far too invasive to justify it.

13 23. That by reason of the aforesaid, the plaintiff sustained severe and permanent personal injuries.

14 24. That in 2001, the city settled a similar case filed on behalf of more than 50,000 people who were strip-
15 searched as they waited to be arraigned

16 25. That in 2005 the city once again settled the claims of thousands of people who were illegally strip-
17 searched in at least six New York detention centers, including Rikers Island, between 1999 and 2002.

18 26. That in 2010 New York City agreed to pay millions of dollars to settle a lawsuit stemming from the
19 illegal strip searches of thousands of nonviolent prisoners, yet these illegal practices continue.

20 27. This action falls within one or more of the exemptions set forth in CPLR §1602.

21 28. The amount exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

22 **THIRD CAUSE OF ACTION**

23 29. Plaintiff repeats, reiterates and realleges each and every allegation contained in the above paragraphs
24 with the same force and effect as if more fully set forth herein.

25 30. That on December 31, 2016, Defendants CITY OF NEW YORK/THE NEW YORK CITY POLICE
DEPARTMENT, its agents, servants and/or employees, specifically POLICE OFFICER OSCAR

1 VARASVILLA, TAX NO. 954394 AND NEW YORK CITY POLICE OFFICERS "JOHN DOE" SAID
2 DEFENDANTS TRUE NAMES BEING UNKNOWN TO PLAINTIFF, IT BEING THEREBY INTENDED
3 TO DESIGNATE THOSE POLICE OFFICERS, unlawfully, illegally, unjustifiably, intentionally,
4 maliciously, wantonly, recklessly, and without probable cause, reason or justification battered and
5 used excessive force to effectuate the detention and arrest of plaintiff herein.

6 31. That by reason of the aforesaid, the plaintiff sustained severe and permanent personal injuries and
7 damages.

8 32. This action falls within one or more of the exemptions set forth in CPLR §1602.

9 33. The amount exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

10 **FOURTH CAUSE OF ACTION**

11 34. Plaintiff repeats, reiterates and realleges each and every allegation contained in the above paragraphs
12 with the same force and effect as if more fully set forth at length herein.

13 35. Defendant CITY OF NEW YORK/THE NEW YORK CITY POLICE DEPARTMENT, its agents,
14 servants and/or employees, specifically POLICE OFFICER OSCAR VARASVILLA, TAX NO.
15 954394 AND NEW YORK CITY POLICE OFFICERS "JOHN DOE" SAID DEFENDANTS TRUE
16 NAMES BEING UNKNOWN TO PLAINTIFF, IT BEING THEREBY INTENDED TO DESIGNATE
17 THOSE POLICE OFFICERS, acting within the scope of their employment did negligently hire, retain,
18 train and supervise Individuals who were unfit for the performance of police duties on DECEMBER 31,
19 2016.

20 36. That by reason of the aforesaid, the plaintiff sustained severe and permanent personal injuries and
21 damages.

22 37. This action falls within one or more of the exemptions set forth in CPLR §1602.

23 38. The amount exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

24 **FIFTH CAUSE OF ACTION**

25 39. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the above paragraphs

1 40. That on DECEMBER 31, 2016, plaintiff was falsely arrested, by the aforementioned POLICE
2 OFFICER WILLIAM FLAHERTY, TAX NO. 948288, AND DEFENDANTS, NEW YORK CITY POLICE
3 OFFICERS "JOHN DOE", SAID DEFENDANTS TRUE NAMES BEING UNKNOWN TO PLAINTIFF,
4 IT BEING THEREBY INTENDED TO DESIGNATE THOSE POLICE OFFICERS, agents, servants,
5 and/or employees of the defendant, CITY OF NEW YORK, for the aforementioned violations of the
6 Penal Law of the State of New York.

7 41. That following the aforementioned arrest of the plaintiff on December 31, 2016, plaintiff was unlawfully
8 detained and imprisoned for a period of several hours.

9 42. That said defendant POLICE OFFICER OSCAR VARASVILLA, TAX NO. 954394 AND NEW YORK
10 CITY POLICE OFFICERS "JOHN DOE" SAID DEFENDANTS TRUE NAMES BEING UNKNOWN TO
11 PLAINTIFF, IT BEING THEREBY INTENDED TO DESIGNATE THOSE POLICE OFFICERS, having
12 the real apparent ability to cause imminent harmful and offensive bodily contact and the power and
13 authority to arrest and detain the plaintiff did so and forcibly detained plaintiff and falsely arrested him.

14 43. That the acts of forcibly detaining plaintiff and falsely arresting him deprived plaintiff of his rights and
15 liberties as set forth in the Constitutions of the United States and of the State of New York, without any
16 conduct on the part of plaintiff to so warrant to wit:

- 17 a. In that all of the actions of the defendants, their agents, servants and employees, were
18 committed with the intention to cause bodily and mental injury to the plaintiff, to arrest,
19 restrain and imprison the plaintiff without his consent, the plaintiff was at all times
20 conscious of his arrest, did not consent to the false arrest and imprisonment, and said
21 actions were not otherwise privileged; and
- 22 b. The arrest and imprisonment were not justified by probable cause or other legal privilege;
23 defendants, their agents, servants and employees, acting under color of statute,
24 ordinances, regulations, customs and usages of the State and City of New York, County
25 of New York, and under the authority of their office as police officers for said County.

- 1 c. That the defendant(s), its agents, servants and employees failed to adequately and
2 properly hire, retain, train, supervise, discipline or in any other way control the behavior
3 and performance of the defendants, their agents, servants and employees; that in their
4 hiring practices in the exercise of their police functions and their failure to enforce the laws
5 of the State and City of New York is evidence of the reckless lack of cautious regard for
6 the rights of the public including plaintiff; in that they exhibited a lack of that degree of due
7 care which prudent and reasonable individuals would show in executing the duties of the
8 defendants; and
- 9 d. The failure of the defendants, its agents, servants and employees to hire, train, supervise,
10 discipline or in any other way control the defendants, in the exercise of their functions; in
11 that their failure to enforce the laws of the state of New York and The City of New York
12 was and is carried out willfully, wantonly, maliciously and with such reckless disregard for
13 the consequences so as to display a conscious disregard for the dangers of harm and
14 injury to the citizens of the State and City of New York including plaintiff; and
- 15 e. Due to the acts of the defendants, its agents, servants and employees herein to discipline
16 and properly hire the defendants and the continued employment of the defendants,
17 agents, servants and employees presents a clear and present danger to the citizens of
18 the City and State of New York, County of Kings; and
- 19 f. That the said arrest of plaintiff was procured by the defendants, their agents, servants and
20 employees in this action unlawfully. That the commencement and/or continuation of
21 plaintiff's detention by the defendants was without probable cause and with actual malice;
22 and
- 23 g. That the defendants, its agents, servants and employees permitted the use of policy
24 and/or drafted policy that was violative of the Constitutional rights of plaintiff; and in that
25 each all of the acts of the defendants, their agents, servants and employees alleged
herein, were done not as individuals but under the color and pretense of the statutes,

ordinances, regulations, customs and usages of the State of New York, City of New York and County of Kings, and under the authority of their office as police officers.

44. Defendant(s) did not have probable cause to arrest plaintiff, and said act deprived plaintiff of his Constitutional rights as set forth in the Constitution of the United States and the Constitution of the State of New York.

45. As a direct result of the illegal actions and conduct on the part of the defendants, their agents, servants and employees, plaintiff was falsely arrested and imprisoned.

46. That at all time hereinafter mentioned, defendants, their agents, servants and/or employees, specifically members of the New York City Police Departments were acting under the color of their official capacity and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York and State of New York.

47. Said agents, servants and/or employees, specifically members of the New York City Police Department acting under the color of law, have subjected plaintiff and other persons to a pattern of conduct consisting of false imprisonment and arrest at the time said person was lawfully and properly on public property in the City and State of New York, County of Bronx, in denial of rights, privileges and immunities guaranteed plaintiff and other citizens by the Constitution of the United States and the State of New York.

48. This systemic pattern of conduct consists of a large number of false arrest and false imprisonment and negligence visited upon plaintiff and other citizens by defendants and under color of law, and while carried out under color of law, have no justification or excuse in law and are instead illegal, improper and unrelated to any activity in which police officers may appropriately and legally engage in the course of protecting persons or property or ensuring civil order.

49. That plaintiff's civil and constitutional rights were violated as a result of an official or unofficial custom including but not limited to policies and customs concerning the investigative procedures conducted before the effectuation of an arrest and the hiring, training, supervision, retention and discipline of the

CITY OF NEW YORK, its agents, servants and/or employees who are responsible of conducting said investigative tasks.

50. That defendant the CITY OF NEW YORK encouraged, approved and/or tolerated the use of misconduct involving false arrests and false imprisonments against civilians.

51. This systemic pattern of conduct consists of the use of excessive force while effectuating an arrest visited upon plaintiff and other citizens by defendants and under color of law, and while carried out under color of law, have no justification or excuse in law and are instead illegal, improper and unrelated to any activity in which police officers may appropriately and legally engage in the course of protecting persons or property or ensuring civil order.

52. That plaintiff's civil and constitutional rights were violated as a result of an official or unofficial custom including but not limited to policies and customs concerning the use of excessive force while effectuating and arrest and the hiring, training, supervision, retention and discipline of the CITY OF NEW YORK, its agents, servants and/or employees who take part in effectuating arrests.

53. That defendant the CITY OF NEW YORK encouraged, approved and/or tolerated the use of excessive force while effectuating an arrest.

54. That defendant the CITY OF NEW YORK encourage, approve and/or tolerate attempts by the police officers and the New York City Police Department to conceal misconduct by way of the use of excessive force in effectuating an arrest by failing to provide adequate training, supervision and discipline to the officers.

55. Although defendants, their agents, servants and/or employees knew or should have known the fact that the aforementioned patterns of conduct are carried out by their agents, servants or employees, said defendants have not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizen injured thereby, or to take any disciplinary action whatever against any of their agents, servants or employees.

1 56. The unlawful and illegal conduct of the defendants, their agents, servants and employees and each of
2 them, deprived plaintiff of the following rights, privileges and immunities secured to him by the
3 Constitutions of the United States and the State of New York:

- 4 a. The right of plaintiff to be secure in his home
5 b. The right of plaintiff to be secure of his person
6 c. The right of plaintiff not to be deprived of life, liberty or property without due process of
7 law.
8 d. The right of equal protection under the laws of United States of America.

9 57. That by reason of the aforesaid violations, false arrest and false imprisonment, by the defendants,
10 their agents, servants and employees who conspired together to wrongly deprive plaintiff of his rights
11 and privileges as provided to him in the Constitution of the United States and the New York State
12 Constitution, plaintiff was deprived of his liberty, and was subjected to and caused to suffer great
13 indignity, humiliation, pain and great distress of mind and body and was held up to scorn and ridicule,
14 was injured in his character and reputation, was prevented from attending his usual business and
15 avocation, and the said plaintiff has been otherwise damaged.

16 58. This action falls within one or more of the exemptions set forth in CPLR §1602.

17 59. The amount exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

18 **SIXTH CAUSE OF ACTION**

19 60. Plaintiff repeats, reiterates and realleges each and every allegation contained in the above
20 paragraphs with the same force and effect as if more fully set forth at length herein.

21 61. That on December 31, 2016 defendant POLICE OFFICER WILLIAM FLAHERTY, TAX NO. 948288
22 and defendant NEW YORK CITY POLICE OFFICERS "JOHN DOE" SAID DEFENDANTS TRUE
23 NAMES BEING UNKNOWN TO PLAINTIFF, IT BEING THEREBY INTENDED TO DESIGNATE
24 THOSE POLICE OFFICERS assaulted and battered plaintiff.

25 62. That the actions of Defendants in assaulting and battering plaintiff were willful, illegal, intentional,
malicious and unwarranted.

1 63. That the actions of defendants were without any just cause or provocation, and caused plaintiff
2 physical and psychological injury.

3 64. The amount exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

4 **SEVENTH CAUSE OF ACTION**

5 65. Plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs set
6 forth above, with the same force and effect as if more fully set forth herein.

7 66. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, maintained a
8 police force known as THE NEW YORK CITY POLICE DEPARTMENT;

9 67. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK by THE NEW
10 YORK CITY POLICE DEPARTMENT, its agents, servants and/or employees, carelessly, negligently,
11 and recklessly hired applicants for the position of police officers;

12 68. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK by THE NEW
13 YORK CITY POLICE DEPARTMENT, its agents, servants and/or employees, carelessly, negligently,
14 and recklessly trained applicants for the position of police officers;

15 69. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK by THE NEW
16 YORK CITY POLICE DEPARTMENT, its agents, servants and/or employees, carelessly, negligently
17 and recklessly supervised, controlled, managed, maintained and inspected the activities of its police
18 officers;

19 70. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK by THE NEW
20 YORK CITY POLICE DEPARTMENT, its agents, servants and/or employees caused, permitted and
21 allowed its police officers to act in an illegal, unprofessional, negligent and/or deliberate manner in
22 carrying out its official duties and/or responsibilities;

23 71. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK by THE NEW
24 YORK CITY POLICE DEPARTMENT, its agents, servants and/or employees, carelessly, negligently
25 and recklessly retained in its employ, police officers clearly unfit for the position who acted in an

1 illegal, unprofessional, negligent and/or deliberate manner in carrying out their official duties and/or
2 responsibilities;

3 72. That as a result thereof plaintiff was maliciously prosecuted.

4 73. That the occurrence and injuries sustained by plaintiff, were caused solely by, and as a result of the
5 malicious, reckless, negligent, and/or intentional conduct of the defendant, THE CITY OF NEW YORK
6 by THE NEW YORK CITY POLICE DEPARTMENT, its agents, servants and/or employees, as set
7 forth above, without any provocation on the part of the plaintiff contributing thereto, specifically, the
8 negligent and reckless manner in which said defendant hired, trained, supervised, controlled,
9 managed, maintained, inspected and retained its police officers and corrections officers;

10 74. That solely by reason of these malicious, reckless, negligent and/or intentional acts of the defendants,
11 its agents, servants and/or employees, plaintiff became and was rendered sick, sore, lame, bruised
12 and disabled, received severe and serious psychological, emotional and social harm experienced
13 great pain and suffering, incurred expenses as a result and will necessarily incur similar expenses in
14 the future; has been unable to attend his usual occupation and avocation in the manner required and
15 has suffered damages as a result, and in other ways sustained a loss of diverse sums of money;

16
17 75. This action falls within one or more of the exemptions set forth in CPLR §1602;

18 76. The amount exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction;

19 WHEREFORE, Plaintiff demands judgment against the Defendants herein on all causes of action, in an
20 amount exceeding the jurisdictional limits of all lower courts that would otherwise have jurisdiction, together with the
21 costs and disbursements of this action.

22 Dated: New York, New York
23 April 28, 2017
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Yours etc.
STEVEN ADAM RUBIN & ASSOCIATES, PLLC

BY: STEVEN ADAM RUBIN, ESQ.
71 West 23 Street, Suite 1623
New York, NY 10010
212-643-5402

VERIFICATION BY AFFIDAVIT

STATE OF NEW YORK

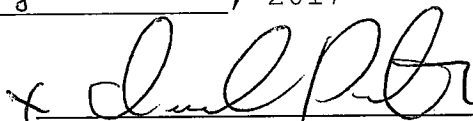
SS:

COUNTY OF NEW YORK,

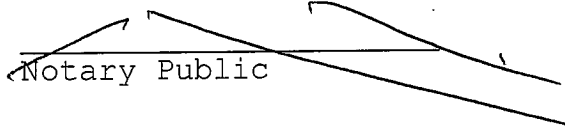
Israel Pieter, being duly sworn, says:

I am a Plaintiff in the action herein: I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

DATED: New York, New York

April 28, 2017
Israel Pieter

Sworn to before me this
28 day of April, 2017


Notary Public

STEVEN A. RUSIN
Notary Public, State of New York
No. 02408019531
Qualified in New York County
Commission Expires October 22, 2020

